

Short Title	Session and Chapter
Public Health Act, 1936... ..	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Trunk Roads Act, 1936	1 Edw. 8 & 1 Geo. 6. c. 5.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Town and Country Planning Act, 1944	7 & 8 Geo. 6. c. 47.
Distribution of Industry Act, 1945	8 & 9 Geo. 6. c. 36.
Statutory Orders (Special Procedure) Act, 1945	9 & 10 Geo. 6. c. 18.
Trunk Roads Act, 1946	9 & 10 Geo. 6. c. 30.
Acquisition of Land (Authorisation Procedure) Act, 1946.	9 & 10 Geo. 6. c. 49.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Forestry Act, 1947	10 & 11 Geo. 6. c. 21.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
River Boards Act, 1948	11 & 12 Geo. 6. c. 32.
Special Roads Act, 1949	12, 13 & 14 Geo. 6. c. 32.
Coast Protection Act, 1949	12, 13 & 14 Geo. 6. c. 74.
National Parks and Access to the Countryside Act, 1949.	12, 13 & 14 Geo. 6. c. 97.
Highways (Provision of Cattle Grids) Act, 1950	14 Geo. 6. c. 24.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.
Livestock Rearing Act, 1951	14 & 15 Geo. 6. c. 18.
New Streets Act, 1951	14 & 15 Geo. 6. c. 40.
Costs in Criminal Cases Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 48.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Housing Repairs and Rents Act, 1954	2 & 3 Eliz. 2. c. 53.
Post Office and Telegraph (Money) Act, 1955... ..	4 & 5 Eliz. 2. c. 14.
Agriculture (Improvement of Roads) Act, 1955	4 & 5 Eliz. 2. c. 20.
Road Traffic Act, 1956	4 & 5 Eliz. 2. c. 67.
Parish Councils Act, 1957	5 & 6 Eliz. 2. c. 42.
Housing Act, 1957	5 & 6 Eliz. 2. c. 56.
Agriculture Act, 1957	5 & 6 Eliz. 2. c. 57.

CHAPTER 26

Terms and Conditions of Employment Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Catering wages boards to become wages councils.
2. Wages councils: advisory committees.
3. Provisions as to abolition, and variation of field of operation, of wages councils.
4. Repeal of paragraph (b) of s. 10 (3) of Act of 1945.
5. Apportionment of remuneration.
6. Remuneration of certain home-workers.

Section

7. Amendment as to enforcement of Act of 1945.
8. Settlement of claims as to recognised terms or conditions of employment.
9. Short title, construction, citation, interpretation, repeal, commencement and extent.

SCHEDULES:

First Schedule—Transitional Provisions.

Second Schedule—Provisions as to Advisory Committees.

Third Schedule—Enactments repealed.

An Act to repeal the Catering Wages Act, 1943, and to convert wages boards under that Act into wages councils; to make further provision with respect to wages councils and statutory minimum remuneration and with respect to the observance of recognised terms or conditions of employment; and for purposes connected with the matters aforesaid.

[30th April, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Catering Wages Act, 1943, shall cease to have effect, and the wages boards to which this section applies shall be deemed to be wages councils—

Catering wages boards to become wages councils.
6 & 7 Geo. 6.
c. 24.

- (a) established by wages council orders under Part I of the Act of 1945, having their existing chairmen, deputy chairmen, other members and officers, and having their existing names, but with the substitution of the word "Council" for the word "Board", and
- (b) operating in relation to the workers and their employers in relation to whom, by virtue of orders made under section four of the Catering Wages Act, 1943, they were respectively operating immediately before the commencement of this Act.

(2) Any order under section eight of the Catering Wages Act, 1943, in force immediately before the commencement of this Act shall thereafter have effect as if it were a wages regulation order under section ten of the Act of 1945, and may be amended or revoked accordingly.

(3) This section applies to—

- (a) the Industrial and Staff Canteen Undertakings Wages Board,
- (b) the Unlicensed Place of Refreshment Wages Board,
- (c) the Licensed Residential Establishment and Licensed Restaurant Wages Board, and
- (d) the Licensed Non-residential Establishment Wages Board.

(4) The transitional provisions set out in the First Schedule to this Act shall have effect for the purposes of this section.

Wages
councils:
advisory
committees.

2.—(1) A wages council may request the Minister to appoint a committee for any of the workers within the field of operation of the council and the Minister shall appoint a committee accordingly, and the council may refer to it for a report and recommendations any matter relating to those workers which the council thinks it expedient so to refer.

(2) Section seven of the Act of 1948 (which provides for the continuance in office of members of wages councils or central co-ordinating committees until the appointments of their successors take effect) shall apply in relation to members of any committee appointed under this section as it applies in relation to members of wages councils or central co-ordinating committees.

(3) The provisions of the Second Schedule to this Act shall have effect with respect to committees appointed under this section.

(4) A committee constituted at the request of a wages board under subsection (2) of section six of the Catering Wages Act, 1943, being a committee in existence immediately before the commencement of this Act, shall be deemed to be a committee constituted in like manner under this section at the request of the wages council which the board becomes by virtue of the foregoing section, and paragraph 2 of the First Schedule to this Act shall apply to its members as it applies to the members of wages councils therein referred to.

5 & 6 Eliz. 2.
c. 20.

(5) In Part III of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies certain offices the holders of which are disqualified under that Act) and in the Part substituted therefor by the Third Schedule to that Act in its application to the Senate and the House of Commons of Northern Ireland, in the entry relating to Councils and Committees under the Act of 1945, after the words "1945" there shall be inserted the words "Chairman of a Committee appointed under paragraph 1 (1) (a) of the Second Schedule to the Terms and Conditions of Employment Act, 1959", and for the words "that Act" there shall be substituted the words "the said Act of 1945".

3.—(1) The Minister—

- (a) may if he thinks fit in any case where he is considering whether to exercise his power under subsection (1) of section six of the Act of 1945 to abolish or vary the field of operation of a wages council,
- (b) shall in any case where an application for the abolition of a wages council has been made to him under subsection (2) of the said section six and he does not thereupon proceed to the making of an order under the said subsection (1) giving effect to the application,

Provisions as
to abolition,
and variation
of field of
operation, of
wages councils.

refer to a commission of inquiry the question whether the council should be abolished or, as the case may be, its field of operation varied; and section five of the Act of 1945, in its application to the making of an order in pursuance of a recommendation of a commission under this section, shall have effect as if any reference in that section to a wages council recommendation included a reference to the recommendation of the commission.

(2) On a reference, under the foregoing subsection or under paragraph (b) of subsection (4) of section five of the Act of 1945 (which provides for references to a commission of inquiry in certain circumstances of draft orders to abolish or vary the field of operation of a wages council), as to the abolition of a wages council, a commission of inquiry, if of opinion that it is expedient to do so having regard—

- (a) to the extent to which there is, and is likely to remain, adequate machinery set up by agreement between organisations representing workers and employers respectively for the effective regulation of remuneration and conditions of employment of workers within the field of operation of the wages council to which the reference relates, or
- (b) to the extent (if any) to which it is practicable and desirable to bring within the field of operation of another wages council all or any of the workers within the field of operation of the council to which the reference relates,

or to both those considerations, may make a report to the Minister recommending—

- (i) the abolition of the wages council to which the reference relates, or
- (ii) the narrowing of the field of operation of the council, and (in either case), if the commission is of opinion that it is expedient as aforesaid, also recommending the transfer of workers to the field of operation of another existing wages

council or a wages council to be established, whether or not in pursuance of a wages council recommendation embodied in the same report.

(3) On a reference, under subsection (1) of this section or the said paragraph (b) of subsection (4) of section five of the Act of 1945, as to the variation of the field of operation of a wages council, the commission may make a report to the Minister recommending any variation (including the transfer of workers to the field of operation of any other such wages council as aforesaid) which appears to the commission desirable in all the circumstances.

(4) In the proviso to subsection (2) of section five of the Act of 1948 (which provides for the notification to commissions of inquiry of objections to draft orders referred to them) for the words "an order in pursuance of a wages council recommendation" there shall be substituted the words "an order in pursuance of a recommendation of a commission of inquiry".

(5) The power of the Minister under paragraph (b) of subsection (4) of section five of the Act of 1945, as applied by section six of that Act, to modify a draft order shall include power to make any alterations necessary to give effect to a recommendation of a commission of inquiry under this section, with or without modifications.

(6) This section shall be construed as one with section six of the Act of 1945.

(7) It is hereby declared that nothing in subsection (2) of section three of the Act of 1948 affects the duty of the Minister under paragraph (a) of the proviso to subsection (1) of section six of the Act of 1945 to consult a central co-ordinating committee.

(8) Any increase attributable to this section in the sums payable out of moneys provided by Parliament under section twenty-two of the Act of 1945 shall be defrayed out of moneys so provided.

Repeal of
paragraph (b)
of s. 10 (3) of
Act of 1945.

4. Paragraph (b) of the proviso to subsection (3) of section ten of the Act of 1945 (which requires a central co-ordinating committee to be furnished with copies of wages regulation proposals on their submission to the Minister) shall cease to have effect.

Apportion-
ment of
remuneration.

5. Where for any period a worker receives remuneration for work for part of which he is entitled to statutory minimum remuneration at one or more time rates and for the remainder of which no statutory minimum remuneration is fixed, the amount of the remuneration which is to be attributed to the work for which he is entitled to statutory minimum remuneration shall, if not apparent from the terms of the contract between

the employer and the worker, be deemed for the purposes of the Act of 1945 to be the amount which bears to the total amount of the remuneration the same proportion as the time spent on the part of the work for which he is entitled to statutory minimum remuneration bears to the time spent on the whole of the work.

6. A home-worker under a contract for the execution of work with statutory minimum remuneration shall, notwithstanding that the contract is not a contract of service or a contract for the execution of the work by the home-worker personally, be treated for the purposes of the statutory provisions relating to the obligation to pay statutory minimum remuneration (other than holiday remuneration), and the statutory provisions providing for, or ancillary to, the enforcement of that obligation, as if he were a worker within the meaning of the Act of 1945; and references in the Act of 1945 to an outworker and an employer shall be construed accordingly.

Remuneration of certain home-workers.

7. In subsection (6) of section seventeen of the Act of 1945 (which inter alia provides a penalty for refusal to comply with the requirements of officers acting for the purposes of Part II of that Act) for the word "refuses" there shall be substituted the word "fails", and at the end of the subsection there shall be added—

Amendment as to enforcement of Act of 1945.

" Provided that it shall be a defence for a person charged under this subsection with failing to comply with a requirement to prove that it was not reasonably practicable to comply therewith."

8.—(1) Where a claim is duly reported to the Minister under this section—

Settlement of claims as to recognised terms or conditions of employment.

- (a) that terms or conditions of employment are established in any trade or industry, or section of a trade or industry, either generally or in any district, which have been settled by an agreement or award, and
- (b) that the parties to the agreement, or to the proceedings in which the award was made, are or represent organisations of employers and organisations of workers or associations of such organisations, and represent (generally or in the district in question, as the case may be) a substantial proportion of the employers and of the workers in the trade, industry or section, being workers of the description (hereinafter referred to as "the relevant description") to which the agreement or award relates, and
- (c) that as respects any worker of the relevant description an employer engaged in the trade, industry or section (or, where the operation of the agreement or award is

limited to a district, an employer so engaged in that district), whether represented as aforesaid or not, is not observing the terms or conditions (hereinafter referred to as "the recognised terms or conditions"),

the Minister may take any steps which seem to him expedient to settle, or to secure the use of appropriate machinery to settle, the claim and shall, if the claim is not otherwise settled, refer it to the Industrial Court constituted under Part I of the Industrial Courts Act, 1919:

9 & 10 Geo. 5.
c. 69.

Provided that—

(i) no claim shall be reported under this section as respects workers whose remuneration or minimum remuneration is fixed (otherwise than by the employer, with or without the approval of any other person) in pursuance of any enactment other than this section or in the case of whom provision is made by or under any enactment other than this section for the settlement of questions as to remuneration or minimum remuneration;

(ii) no claim shall be reported under this section as respects terms or conditions fixed as aforesaid.

(2) For the purposes of this section a claim, to be duly reported, must be reported to the Minister in writing by an organisation or association being, or represented by, one of the parties mentioned in paragraph (b) of the foregoing subsection; and if in the opinion of the Minister the report of a claim does not contain sufficient particulars he may require further particulars to be given, and if he does so the report shall not be treated as having been duly made until the Minister is satisfied that the particulars required have been given.

(3) If on a reference under this section the Industrial Court is satisfied that the claim is well founded, then unless the Court is satisfied that the terms or conditions which the employer is observing are not less favourable than the recognised terms or conditions the Court shall make an award requiring the employer to observe the recognised terms or conditions as respects all workers of the relevant description from time to time employed by him.

(4) An award under this section shall have effect as an implied term of the contract of employment, and shall have effect from such date as the Industrial Court may determine, being a date not earlier than the date on which, in the opinion of the Court, the employer was first informed of the claim giving rise to the award by the organisation or association which reported the claim to the Minister; and an award under this section shall cease to have effect on the coming into operation of an agreement or award varying or abrogating the recognised terms or conditions.

(5) For the purposes of this section the carrying on of the activities of public or local authorities shall be treated as the carrying on of a trade or industry.

9.—(1) This Act may be cited as the Terms and Conditions of Employment Act, 1959, and shall be construed as one with the Wages Councils Acts, 1945 to 1948, and this Act and those Acts may be cited together as the Wages Councils Acts, 1945 to 1959.

Short title,
construction,
citation,
interpretation,
repeal, com-
mencement
and extent.

(2) In this Act the following expressions have the meanings hereby assigned to them respectively:—

“ Act of 1945 ” means the Wages Councils Act, 1945 ;

8 & 9 Geo. 6.
c. 17.

“ Act of 1948 ” means the Wages Councils Act, 1948 ;

12, 13 & 14
Geo. 6. c. 7.

“ home-worker ” means a person who contracts with a person, for the purposes of that person’s business, for the execution of work to be done in a place not under the control or management of the person with whom he contracts, and who does not normally make use of the services of more than two persons in the carrying out of contracts for the execution of work with statutory minimum remuneration ;

“ statutory provision ” means a provision contained in or having effect under any enactment ;

“ time rate ” means a rate where the amount of the remuneration is to be calculated by reference to the actual number of hours worked ;

“ work with statutory minimum remuneration ” means work of a description for which, when executed by a worker within the meaning of the Act of 1945, statutory minimum remuneration is provided under that Act.

(3) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act shall come into operation on the expiration of the period of one month beginning with the date of the passing thereof.

(5) Notwithstanding anything in subsection (1) of this section, subsection (5) of section two of this Act, subsection (3) of this section and Part II of the Third Schedule to this Act shall extend to Northern Ireland

SCHEDULES**Section 1.****FIRST SCHEDULE****TRANSITIONAL PROVISIONS**

1. In this Schedule "wages board" means any of the boards to which section one of this Act applies, and "wages council" means the wages council which a wages board becomes by virtue of that section.

2. The chairman, deputy chairman, other members and officers of a wages council shall hold office as if appointed for periods expiring when their respective appointments to or under the wages board would have expired, and any member of a wages council shall be deemed to have been appointed as an independent person, as representing employers, or as representing workers, according to the capacity in which he was appointed to the wages board.

3.—(1) Any wages regulation proposals of a wages board shall be deemed to be wages regulation proposals of the wages council, and anything duly done before the commencement of this Act under the Catering Wages Act, 1943, in relation to proposals of a wages board shall be deemed for the purposes of the Act of 1945 to have been duly done under the corresponding provision of that Act.

(2) The foregoing sub-paragraph does not apply to proposals to which effect has been given by the Minister before the commencement of this Act.

4. In subsection (3) of section eleven of the Act of 1945 (which enables evidence to be given, on the conviction of an employer of failure to pay the minimum remuneration, of any like contravention within the previous two years and empowers the court, on proof of the contravention, to order the employer to pay the amount of the under-payment) in paragraph (a) after the words "part of the employer" there shall be inserted the words "(whether under this Part of this Act or under the Catering Wages Act, 1943)" and in paragraph (b) after the word "Act" there shall be inserted the words "or of the said Act of 1943".

52 & 53 Vict.
c. 63.

5. Without prejudice to the generality of the operation of subsection (2) of section thirty-eight of the Interpretation Act, 1889, (which relates to the effect of repeals), it is hereby declared that the repeal by this Act of the Catering Wages Act, 1943, does not affect the right of a worker to recover sums due from his employer on account of the payment to the worker of remuneration less than the statutory minimum remuneration, or the power of an officer appointed to act for the purposes of that Act to institute on behalf of and in the name of the worker civil proceedings for the enforcement of that right or the power of the court in such proceedings to make an order for the payment of costs by the officer.

6. The references in section seventeen of the Act of 1945 (which relates to officers and the powers and duties thereof) to Part II of

that Act shall include references to the Catering Wages Act, 1943 ; and officers appointed under that section—

1st Sch.
—cont.

- (a) may proceed thereunder accordingly in relation to things done or omitted to be done before the commencement of this Act ; and
- (b) may also exercise the powers conferred on officers appointed under the Catering Wages Act, 1943, so far as those powers continue to be exercisable, as if they had been appointed under the last-mentioned Act.

7. A permit granted by a wages board under subsection (4) of section nine of the Catering Wages Act, 1943, authorising the employment of a worker at less than the statutory minimum remuneration shall have effect as if it had been granted by the wages council under subsection (1) of section twelve of the Act of 1945.

8.—(1) Subsection (1) of section fifteen of the Act of 1945 (which requires the keeping of the necessary records to show whether or not the provisions of Part III of that Act are being complied with) shall have effect with the substitution for the words from “ to show ” to “ as respects them ” of the words “ to indicate, as respects those workers, compliance or non-compliance with the provisions of this Part of this Act or the provisions of the Catering Wages Act, 1943 ”.

(2) As respects wages regulation proposals and wages regulation orders which have effect under the Act of 1945 by virtue of this Act, it shall, except in so far as may be otherwise expressly provided by regulations under the Act of 1945, be sufficient compliance with subsection (2) of section fifteen of that Act (which relates to the posting or giving of notice of wages regulation proposals and orders) to comply with the requirements in force immediately before the commencement of this Act under subsection (2) of section eleven of the Catering Wages Act, 1943, and the regulations under that Act.

9. Subsection (1) of section fourteen of the Act of 1945 (which restricts the payment of premiums by apprentices) shall not apply to any payment made, under a contract entered into before the passing of this Act, by or in respect of a worker within the field of operation, as constituted by section one of this Act, of a wages council so constituted.

SECOND SCHEDULE

Section 2.

PROVISIONS AS TO ADVISORY COMMITTEES

1.—(1) Any committee appointed by the Minister at the request of a wages council shall consist of—

- (a) a chairman chosen as being an independent person ;
- (b) persons who appear to the Minister to represent the employers in relation to whom the committee will operate ; and
- (c) persons who appear to the Minister to represent the workers in relation to whom the committee will operate.

(2) On any such committee the persons appointed under head (b), and the persons appointed under head (c), of the foregoing subparagraph shall be equal in number.

2ND SCH.
—cont.

2. The appointment of a member of any such committee as aforesaid shall be for such term as may be determined by the Minister before his appointment and shall be subject to such conditions as may be so determined.

3. There may be paid to the chairman of any such committee as aforesaid such fees, and to any member of any such committee such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such fees and allowances shall be defrayed out of moneys provided by Parliament.

Section 9.

THIRD SCHEDULE

ENACTMENTS REPEALED

PART I

REPEALS EXTENDING TO GREAT BRITAIN ONLY

Session and Chapter	Short Title	Extent of Repeal
6 & 7 Geo. 6. c. 24.	The Catering Wages Act, 1943.	The whole Act.
8 & 9 Geo. 6. c. 17.	The Wages Councils Act, 1945.	In section six, in subsection (2), the words from "and where such" to the end. In section ten, in subsection (3), proviso (b).

PART II

REPEALS EXTENDING TO THE WHOLE UNITED KINGDOM

Session and Chapter	Short Title	Extent of Repeal
5 & 6 Eliz. 2. c. 20.	The House of Commons Disqualification Act, 1957.	In Part III of the First Schedule, and in the Part substituted therefor by the Third Schedule, the entry relating to offices under the Catering Wages Act, 1943.

